

Arlington Town Meeting — Motion to Amend

ARTICLE NO. 22

Dated: 4/27/26

I, Elaine Crowder, do hereby submit the following Motion to Amend Article 22:

To amend the main motion by making the following changes to add a Section 12. Severability clause.

Comment:

The effect of this amendment is that the added **Section 12** reads as follows when applied to the recommended vote of the Select Board (additions are underlined and removals are in strikeout):

Section 12 Severability

The invalidity of any section, provision, paragraph, sentence, or clause of this bylaw shall not invalidate any other section, provision, paragraph, sentence, or clause thereof, nor shall it invalidate any determination or finding of a violation under this bylaw which has been issued.

Reason: A reading of the park section of Massachusetts General Law Title VII, Chapter 45 suggests that fines for destruction of property in parks may be capped, or preempted, in the statute. This severability clause seeks to ensure that other amended language in Arlington's park bylaw (Section 2.) remains in force should the AG's office rule that changes to Arlington's *Title IV, Article* , **Section 11. Violation and Fines** are preempted by state law.

Respectfully submitted,

either /s/ [Name] or signature

Elaine Crowder

Elaine Crowder, TMM 19

Date Voted: _____

Action Taken: _____